

The Border Security Force Leave Rules, 1971

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Union of India - Act

The Border Security Force Leave Rules, 1971

UNION OF INDIA

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The Border Security Force Leave Rules, 1971

Rule THE-BORDER-SECURITY-FORCE-LEAVE-RULES-1971 of 1971

Published on 24 July 1971

Commenced on 24 July 1971

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The Border Security Force Leave Rules, 1971

Published vide G.S.R. 1313, dated 24-7-1971, published in the Gazette of India, Ext., Pt.II, Section 3(i), dated 11-9-1971 322.

In exercise of the powers conferred by sub-section (1) of section 141 of the Border Security Force Act, 1968 (47 of 1968

), the Central Government hereby makes the following rules, namely : -

1.

Short title and commencement .-(1) These rules may be called the Border Security Force Leave Rules, 1971.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

[Application of the Central Civil Service (Leave) Rules, 1972, to Border Security Force

.-Subject to the provisions of rules 3 and 4, all members of the Force shall be governed by the provisions of the Central Civil Service (Leave) Rules, 1972 as amended from time to time.]

3.

[Special earned leave in certain cases

.-(1) Notwithstanding anything contained in rule 2, any member of the Force or enrolled person so long as he is serving in any Battalion, Unit or Training Institution of the Border Security Force, shall be entitled to 60 days earned leave in a calendar year.

(2)

The leave account of such member shall be credited with earned leave in advance in two instalments of 30 days each on the 1st of January and the 1st of July every year subject to the following conditions, namely: -

(a)

the leave at the credit of such member at the close of the previous half year shall be carried forward to the next half year, subject to the condition that the leave so carried forward plus the credit for the half year do not exceed the maximum limit of 120 days;

(b)

no such earned leave shall be granted for more than 90 days at a time;

(c)

no second Saturday shall be availed of as a holiday;

[* * *]

4.

[Calculation of earned leave .-(1) Earned leave shall be credited to the leave account of a member of the Force or enrolled person at the rate of 5 days for each completed calendar month of service which he is likely to render in a half year of the calendar year in which he is appointed or is transferred from the office at the Force Headquarters, Inspector-General or Deputy Inspector-General in Border Security Force.

(2)

(a)

The credit of the half year in which such member is due to retire or resigns from the service or is transferred from any Battalion, Unit or Training Institution to Force Headquarters, Inspector-General or Deputy Inspector-General 's Office shall be afforded only at the rate of 5 days per completed calendar month upto the date of retirement, resignation or transfer, as the case may be.

(b)

When such member is removed or dismissed from service or dies while in service, credit of earned leave shall be allowed at the rate of 5 days per completed calendar month upto the end of calendar month preceding the calendar month in which he is removed or dismissed from the service or dies while in service.

(3)

If such member or enrolled person has taken any leave other than earned leave in a half year, the credit to be afforded to his leave account at the commencement of the next half year shall be reduced by 1/6th of such leave, subject to the condition that the reduction so made is limited to the maximum period of earned leave that would be credited at the commencement of the next half year.

(4)

While affording credit of earned leave, fraction of a day shall be rounded off to the nearest day.

(5)

The leave account of such member shall be maintained in the Forms annexed to these rules.]

Schedule

FORM I

[See rule 4(5)]

1. Name of officer, subordinate officer or enrolled person.
2. Date of birth.
3. Date of commencement of continuous service.
4. Date of quasi-permanent/permanent employment.

5.

Date of retirement/resignation.

FORM 2

[See rule 4(5)]

FORM OF LEAVE ACCOUNT

1. Name of Government Servant.

2. Date of birth.

3. Date of commencement of continuous service.

4. Date of retirement/resignation.

5. Date of quasi-permanent/permanent employment.

EARNED LEAVE

Particulars of service in the calendar half year

From To

Completed months of service in the calendar half year

E.L.credited at the beginning of half year

No of days of other kinds of leave (HPL, commuted leave,not due and EOI)

(Col.19+22+22-C+30+33) availed of during the previous calendar half year

E.L.

to be deducted (1/6th) of the period in Col.5)

Total E.L.at the credit in day Col 4+11-6.

1 2

3

4

5

6

7

1.

2.

3.

4.

5.

Leave taken

From To

No.

of days

Balance of E.L. on return from leave Col.7-10

Length of service

From To

No.of completed days

Half pay leave on private affairs and on medical certificate including commuted leave and leave not due

Leave earned (in days) Leave at credit (Col. 15 +32)

8 9

10

11

12 13

14

15 16

Half pay leave on private affairs and on medical certificate including commuted leave and leave not due

Leave taken against the earning on half day

From To No. of days

Commuted leave on medical certificate on full day

From To No.of days

Commuted leave without medical certificate for studies certified to be in public interest (limited to 180 days) half pay leave converted into 90 days commuted leave in entire service

From

To No.of days

Commuted leave converted into half leave (twice of Col 22 and 22-C)

17 18 19

20 21 22

22-A

22-B 22-C

23

Leave not due limited to 360 days in entire service

On medical certificate

From To No.of days

Otherwise than on medical certificate limited to 180 days_____

From To No. of days

Total Leave not due (Col.26 + 29)

Total half pay leave taken (Col. 19+23+30_

Balance of half pay leave

(Col 16-31)

Other kinds of leave taken

24 25 26

27 28 29

30

31

32

33

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